

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 03/19/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922 CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION FILED BY: CAREPATROL FRANCHISE SYSTEMS, LLC <u>*TENTATIVE RULING:*</u>
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The Court continues the hearing on this motion to April 2, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C23-00932 CASE NAME: HONESTII LUMSEY VS. ANTIOCH EDEN RIVERTOWN, L.P. *HEARING ON MINOR'S COMPROMISE RE: HONESTII AMARA LUMSEY FILED BY: LUMSEY, HONESTII AMARA <u>*TENTATIVE RULING:*</u>
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Summary

Petitioner Erica Tiffany Thomas's Petition for Approval of Compromise of Minor Honestii Amara Lumsey's ("Minor") Claim ("Petition"), filed on September 18, 2025, is granted, as set forth below.

Background

On September 18, 2025, Petitioner Erica Tiffany Thomas, parent and guardian ad litem for her daughter, Honestii Amara Lumsey, filed the Petition through counsel Hazel Chang, to compromise the claim that Minor had against Antioch Eden Rivertown, L.P. related to an incident that occurred on July 26, 2022. In that accident, Minor sustained injuries including a broken leg, along with emotional trauma. Petitioner represents that Minor has received treatment at UCSF Benioff Children's Hospital. She has fully recovered and there are no permanent injuries. After some time in litigation, the Defendant offered settlement in the amount of \$100,000, of which \$31,497.67 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deductions are as follows: (1) \$1,700.73 for Medi-Cal liens; (2) \$26,801.60 costs incurred in litigation; and (3) \$40,000 for attorneys' fees. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

The Court continued this matter because it was concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel were given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. Counsel submitted a supplemental declaration, which contained a small amount of additional information to comply with the California Rules of Court. Although the Court is still concerned that the initial 50% contingency fee was extraordinarily high, and the 40% reduction offered by the attorneys remains high but is lower, the Court appreciates that the number of hours, the costs incurred (which are being separately reimbursed), the complexity of the claim for substantial recovery given that the Minor has apparently fully healed, and the length of representation. After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 18, 2025.

3. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and continued to April 22, 2026.